



Division of Child Care & Early Childhood Education
P.O. Box 1437, Slot S140, Little Rock, AR 72203-1437
P: 501.682.8590 F: 501.683.6060 TDD: 501.682.1550

Notice of Serious Incident

Date of Incident: 7/26/2023

Date Received by DCCECE: Millcreek of Arkansas PRTF

Facility Name: Millcreek of Arkansas PRTF

Facility Number: 233

Incident Type: Dual

Report Description: Mandated Reporter Portal: Patient [REDACTED] reported a fading bruise. When questioned on the origin of the bruise, he stated, "[REDACTED] did it." [REDACTED] explained that last week (unable to give an exact date/time), he and a peer engaged in a physical confrontation. [REDACTED] picked up a chair to throw at the peer. Staff member [REDACTED] got the chair away from [REDACTED] and stepped in between the two patients, grabbing them on the upper part of the arm. [REDACTED] continued to explain that the incident was over once [REDACTED] separated them. Nursing report indicates that [REDACTED] has a brownish-green bruising on his left bicep. The allegation was ACCEPTED for investigation by [REDACTED]

Referral ID: [REDACTED] Staff member [REDACTED] was immediately placed on administrative leave, pending the results of the investigation.

Interim Action Narrative: Staff member [REDACTED] was immediately placed on administrative leave, pending the results of the investigation.

Maltreatment Narrative: Patient [REDACTED] reported a fading bruise. When questioned on the origin of the bruise, he stated, "[REDACTED] did it." [REDACTED] explained that last week (unable to give an exact date/time), he and a peer engaged in a physical confrontation. [REDACTED] picked up a chair to throw at the peer. Staff member [REDACTED] got the chair away from [REDACTED] and stepped in between the two patients, grabbing them on the upper part of the arm.

Licensing Narrative: 7/27/2023- Program Coordinator determined that no investigator with [REDACTED] has been assigned to this case yet. Licensing is unable to obtain permission to contact the agency at this time. 7/27/23-Phone call made to Chris Butler of Millcreek who stated there was no video of the incident. 7/27/23-Phone call made to Investigator Tonyetta Flint who gave permission for licensing to interview A/V. Ms. Flint scheduled a visit with licensing at Millcreek for 9AM 7/28/23. Facility visited 7/28/23 in response to complaint that staff [REDACTED] grabbed client [REDACTED] arm causing a bruise. Licensing attended interview with Investigator Tonyetta Flint and A/V [REDACTED] [REDACTED] reported that the incident happened in the dayroom where he lives. [REDACTED] reported that he and another client, [REDACTED] were fighting when "[REDACTED]" broke them up. [REDACTED] added that [REDACTED] did not grab [REDACTED] but grabbed him ([REDACTED] and "dragged me to where I threw some keys". A green/brown discolored bruise was noticed on both of [REDACTED] arms during today's visit. [REDACTED] indicated that he got the bruise on his right arm from a peer and that he got the bruise on his left arm from "[REDACTED]". [REDACTED] stated that he does not remember [REDACTED] saying anything when he grabbed him. [REDACTED] stated that he grabbed him hard to where it hurt adding "he was doing pressure points". [REDACTED] interviewed "he ([REDACTED] threw a shoe at me, so I hit him in his face". [REDACTED] reported that "[REDACTED]" separated him and [REDACTED] [REDACTED] reported "he pulled me off" of [REDACTED]. When asked, [REDACTED] reported that when [REDACTED] pulled him off of [REDACTED] it did not hurt. [REDACTED] reported that he does not remember anything other than being pulled off of [REDACTED]. Witness statements from staff [REDACTED] ([REDACTED]) and client [REDACTED] reviewed. Neither indicated unprofessional behavior on the part of staff. Licensing is not prepared to make a finding at this time, 7/28/23. 7/31/23. T/A for licensing regulation 905.9: Physical restraints shall be performed using minimal force and time necessary. Physical restraint means the application of physical force without the use of any device for the purposes of restraining the free movement of a resident's body. Briefly holding a child without undue force in order to calm or comfort or holding a hand to safely escort a child from one area to another, is not considered a physical restraint. Client [REDACTED] reported receiving bruise on his left arm from being grabbed by staff [REDACTED] ([REDACTED]). Staff [REDACTED] will be retrained on the use of minimal force during restraint holds prior to returning to work with any residents. 8/31/23-Maltreatment Report closed as unsubstantiated. 8/31/23: Maltreatment Report for Case#015254 closed as unsubstantiated. Staff [REDACTED] suspended 7/26/23 immediately following incident. Received email 9/1/23 from Chris Butler of Millcreek that staff [REDACTED] is still employed at Millcreek and received "Restraint Training (breaking up fights with minimal force)" 8/10/23 and was returned to work 8/10/23. This was not approved by Licensing. Facility visited 9/5/23 and finding 521 issued. Chris Butler of Millcreek reminded of Licensing Regulation 110.10: If a complaint of child maltreatment is filed against any owner, operator, employee, foster parent, volunteer, or other person in a child welfare agency, the agency administration shall evaluate the risk to children and determine the suitability of the person(s) to supervise, be left alone with children, have disciplinary control over children, or remain in the child welfare agency until the allegations are determined to be true or unsubstantiated. Any interim action measures shall be approved by the Licensing Unit. T/A noted for regulation 110.10.



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521 Visit Compliance Report

Licensee: Millcreek of Arkansas PRTF

Facility Number: 233

Licensee Address: 1828 INDUSTRIAL DRIVE
FORDYCE AR 71742

Licensing Specialist: Clayton DeBoer

Person In Charge:

Record Visit Date: 7/28/2023

Home Visit Date: 7/28/2023

Purpose of Visit: Complaint Visit

Regulations Out of Compliance:

Regulations Needing Technical Assistance:

Regulation Not Applicable:

Regulations Not Correctable:

Narrative:

Facility visited 7/28/23 in response to complaint that staff [REDACTED] grabbed client [REDACTED] arm causing a bruise. Licensing attended interview with Investigator [REDACTED] and A/V [REDACTED]. [REDACTED] reported that the

incident happened in the dayroom where he lives. [REDACTED] reported that he and another client, [REDACTED], were fighting when "[REDACTED]" broke them up. [REDACTED] added that [REDACTED] did not grab [REDACTED], but grabbed him [REDACTED] and "dragged me to where I threw some keys". A green/brown discolored bruise was noticed on both of [REDACTED] arms during today's visit. [REDACTED] indicated that he got the bruise on his right arm from a peer and that he got the bruise on his left arm from "[REDACTED]". [REDACTED] stated that he does not remember [REDACTED] saying anything when he grabbed him. [REDACTED] stated that he grabbed him hard to where it hurt adding "he was doing pressure points". [REDACTED] interviewed "he [REDACTED] threw a shoe at me, so I hit him in his face". [REDACTED] reported that [REDACTED] separated him and [REDACTED]. [REDACTED] reported "he pulled me off" of [REDACTED]. When asked, [REDACTED] reported that when [REDACTED] pulled him off of [REDACTED], it did not hurt. [REDACTED] reported that he does not remember anything other than being pulled off of [REDACTED]. Witness statements from staff [REDACTED] and client [REDACTED] reviewed. Neither indicated unprofessional behavior on the part of staff.

Licensing is not prepared to make a finding at this time, 7/28/23.

Provider Comments:

CCL Staff Signature :

Date: 8/22/2023



Provider Signature :

Date: 8/22/2023





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521 Visit Compliance Report

Licensee: Millcreek of Arkansas PRTF

Facility Number: 233

Licensee Address: 1828 INDUSTRIAL DRIVE
FORDYCE AR 71742

Licensing Specialist: Clayton DeBoer

Person In Charge:

Record Visit Date: 7/31/2023

Home Visit Date: 7/31/2023

Purpose of Visit: Revisit Complaint

Regulations Out of Compliance:

Regulations Needing Technical Assistance:

Regulation Number: 9. 905. 9

Regulation Description: Physical restraints shall be performed using minimal force and time necessary. Physical restraint means the application of physical force without the use of any device, for the purposes of restraining the free movement of a resident's body. Briefly holding a child without undue force in order to calm or comfort, or holding a hand to safely escort a child from one area to another, is not considered a physical restraint.

Findings Description: Client [REDACTED] reported that staff [REDACTED] bruised his arm during a restraint.

Action Due Date: 8/31/2023

Action Due Description: Staff [REDACTED] will complete retraining on minimal force during restraint holds prior to returning to work with any residents.

Comply Date:

Sub Regulation Description:

Regulation Not Applicable:

Regulations Not Correctable:

Narrative:

7/31/23. T/A for licensing regulation 905.9: Physical restraints shall be performed using minimal force and time necessary. Physical restraint means the application of physical force without the use of any device for the purposes of restraining the free movement of a resident's body. Briefly holding a child without undue force in order to calm or comfort or holding a hand to safely escort a child from one area to another, is not considered a physical restraint.

Client [REDACTED] reported receiving bruise on his left arm from being grabbed by staff [REDACTED]. Staff [REDACTED] will be retrained on the use of minimal force during restraint holds prior to returning to work with any residents.

Provider Comments:

CCL Staff Signature :

Date: 8/22/2023



Provider Signature :

Date: 8/22/2023



**ARKANSAS
DEPARTMENT OF
HUMAN
SERVICES**

Division of Child Care & Early Childhood Education

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Millcreek of Arkansas PRTF
1828 INDUSTRIAL DRIVE
FORDYCE AR 71742

Clayton DeBoer
Donaghey Plaza
P.O. Box 1437
Little Rock, AR. 72203

Facility Visit Compliance Notice

Facility#: 233

Date of Visit: 9/5/2023

Visit Type(s): Revisit Complaint

Time: 9:30 AM - 10:49 AM

Regulation# 1 . 110 . 10

Result : T/A Provided

Action Due Date :

Date Corrected:

Action Due :

Comment : Staff [REDACTED] was returned to work without approval from Licensing.

Visit Comment :

8/31/23: Maltreatment Report for Case [REDACTED] closed as unsubstantiated. [REDACTED] [REDACTED] suspended 7/26/23 immediately following incident. Received email 9/1/23 from [REDACTED] [REDACTED] of Millcreek that staff [REDACTED] is still employed at Millcreek and received "Restraint Training (breaking up fights with minimal force)" 8/10/23 and was returned to work 8/10/23. This was not approved by Licensing. Facility visited 9/5/23 and finding 521 issued. [REDACTED] of Millcreek reminded of Licensing Regulation 110.10: If a complaint of child maltreatment is filed against any owner, operator, employee, foster parent, volunteer, or other person in a child welfare agency, the agency administration shall evaluate the risk to children and determine the suitability of the person(s) to supervise, be left alone with children, have disciplinary control over children, or remain in the child welfare agency until the allegations are determined to be true or unsubstantiated. Any interim action measures shall be approved by the Licensing Unit. T/A noted for regulation 110.10.

CCL Staff Signature :

Date: 9/5/2023



Provider Signature :

Date: 9/5/2023

DECLINED

Your Signature indicates that this form has been reviewed with you; it does not imply your agreement with it.

Right to Appeal: For more information on how to appeal these findings, refer to the minimum Licensing Requirements or contact your Licensing Specialist.